

FL-20-000712 BRADSHAW VS BRADSHAW

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-09-28

Motion: Petitioner's Request for Order re "FOAH Corrections," etc.—DENIED. The Findings and Order After Hearing (FOAH) of July 30, 2026 was entered on even date with Petitioner present in propria persona. The current Request for Order (RFO) was filed on August 11, 2026. It was therefore filed too late to constitute a timely motion for reconsideration of the subject FOAH. (Code Civ. Proc., § 1008(a) [10 days, the 10th being 8/9/26, a Sunday, and therefore being due on or before Monday 8/10/26].) Even if timely, the Court has addressed and ruled on these same matters in the FOAH's of September 9, 2026, and September 14, 2026, and Petitioner fails to demonstrate by affidavits the existence of new or different facts, circumstances or change of law that could not have been obtained and/or presented in the exercise of reasonable diligence at the time of the July 30, 2026 FOAH. (Id.; Craddock v. Hilton Domestic Operating Co., Inc. (2025) 112 Cal.App.5th 284, 304; California Correctional Peace Officers Ass'n v. Virga (2010) 181 Cal.App.4th 30, n. 15; Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (TRG 2026) Ch. 9(I)-E, § 9:329.) The Court is not inclined to reconsider on its own motion and Petitioner is cautioned that continued motions to reconsider without satisfying the time and procedural requirements may be punishable as contempt and/or be met with monetary and other sanctions. (Id., § 1008(d); Weil & Brown, supra, at § 9:333.)

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